

PASSED

CHICKASAW TRIBAL LEGISLATURE
Permanent Resolution Number 38-006
Amendments to Title 17 of the Chickasaw Nation Code
(Offenses against Persons)

WHEREAS, in accordance with Article VII, Sections 4 and 7 of the Constitution of the Chickasaw Nation, the Chickasaw Tribal Legislature shall enact rules and regulations pertaining to the Chickasaw Nation, and shall make decisions pertaining to the acquisition, leasing, disposition and management of real property, subject to federal law, and

WHEREAS, in accordance with Article XI, Section 1 of the Constitution of the Chickasaw Nation, the Governor shall perform all duties appertaining to the office of Chief Executive. He shall sign official papers on behalf of the Nation, and

WHEREAS, the Chickasaw Tribal Legislature has previously enacted rules and regulations for crimes against persons, and

WHEREAS, the Tribal Legislature desires to amend those rules and regulations.

NOW, THEREFORE, BE IT RESOLVED, that Chickasaw Tribal Legislature hereby approves and adopts the following amendments to Title 17, Chapter 5 of the Chickasaw Nation Code, all other sections and parts of sections to remain the same (additions are shown in red, deletions are stricken through):

CHAPTER 5
~~OFFENSES AGAINST THE PUBLIC~~ **OFFENSES AGAINST PERSONS**
~~(RESERVED)~~

SECTION 17-501.1

CHILD ABUSE.

A. It shall be unlawful for a person to willfully or maliciously Harm or Threaten to Harm or fail to protect from Harm or Threatened Harm to the health, safety, or welfare of a child under eighteen (18) years of age.

B. Child Abuse shall be punishable by a fine of not more than fifteen thousand dollars (\$15,000), imprisonment of not more than three (3) years, or both.

C. Child Abuse has a statute of limitations of twelve (12) years. A child may request prosecution of the charge of Child Abuse for five (5) years after his or her eighteenth (18th) birthday if a criminal charge has not previously been filed and the twelve (12) year statute of limitations has passed.

D. “Harm or Threatened Harm” and “Harm or Threaten to Harm” mean any real or threatened physical, mental, or emotional injury or damage to the body or mind that is not accidental including but not limited to Sexual Abuse, Sexual Exploitation, and Child Neglect.

SECTION 17-501.2 **CHILD NEGLECT.**

A. It shall be unlawful for a person responsible for the child’s health, safety, or welfare to willfully or maliciously:

1. fail or omit to provide to the child any of the following:
 - a. adequate food, clothing, shelter, medical care, or supervision; or
 - b. special care made necessary by the physical or mental condition of the child;
2. fail or omit to protect a child from exposure to any of the following:
 - a. the use, possession, sale, or manufacture of illegal drugs;
 - b. illegal activities; or
 - c. sexual acts or materials that are not age appropriate.
3. cause the child to be Abandoned as defined in Title 6 Section 6-201.4(A)(1).

B. Child Neglect shall be punishable by a fine of not more than fifteen thousand dollars (\$15,000), imprisonment of not more than three (3) years, or both.

C. Child Neglect has a statute of limitations of twelve (12) years. A child may request prosecution of the charge of Child Neglect for five (5) years after his or her eighteenth (18th) birthday if a criminal charge has not previously been filed and the twelve (12) year statute of limitations has passed.

SECTION 17-501.3 **DOMESTIC VIOLENCE.**

A. It shall be unlawful to willfully commit any of the following upon a Domestic or Dating Partner:

1. cause or attempt to cause physical or emotional harm or mental anguish;
2. place in a reasonable fear of physical harm to themselves or another family member. This fear may be produced by behavior which induces fear in the victim by harassment, intimidation, stalking, destruction of property, or physical harm or threat of physical harm to household pets;
3. engage in any sexual act by force or coercion; or

4. use or offer to use force or violence.

B. A Domestic or Dating Partner within this section means:

1. a current or former spouse or intimate partner;
2. a person with whom the perpetrator shares a child in common;
3. a person who is cohabitating with or has cohabitated with the perpetrator as a spouse or intimate partner; or
4. a person who is or has been in a social relationship of a romantic or intimate nature with the perpetrator, as determined by the length of the relationship, the type of relationship, and the frequency of interaction between the persons involved in the relationship.

C. For purposes of this Section, a Domestic or Dating Partner does not include a neighbor, co-worker, casual acquaintance, or the ordinary fraternization between persons in a business or social context unless otherwise set out above.

D. Domestic Violence shall be punishable by a fine not exceeding five thousand dollars (\$5,000) or imprisonment not exceeding one (1) year, or both such fine and imprisonment.

E. A second or subsequent conviction of Domestic Violence shall be punishable by a fine not exceeding fifteen thousand dollars (\$15,000) or imprisonment not exceeding three (3) years, or both.

F. In addition to any other penalty specified by this Section, the Court may require a defendant to participate and complete a batterer's intervention program or similar program.

SECTION 17-501.4

DOMESTIC VIOLENCE BY STRANGULATION.

A. It shall be unlawful for any person to willfully cause domestic violence by strangulation or attempting to cause strangulation upon a Domestic or Dating Partner.

B. For purposes of this section, "strangulation" means any form of asphyxia, including but not limited to, asphyxia characterized by the closure of the blood vessels or air passages of the neck as a result of external pressure on the neck however slight or the closure of the nostrils or mouth as a result of external pressure on the head.

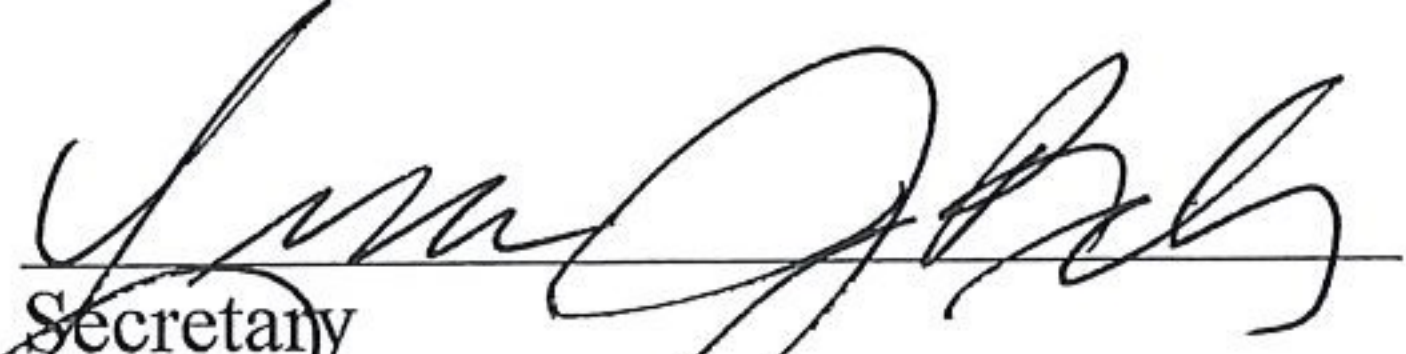
C. A Domestic or Dating Partner shall mean the same as within Section 17-501.3.

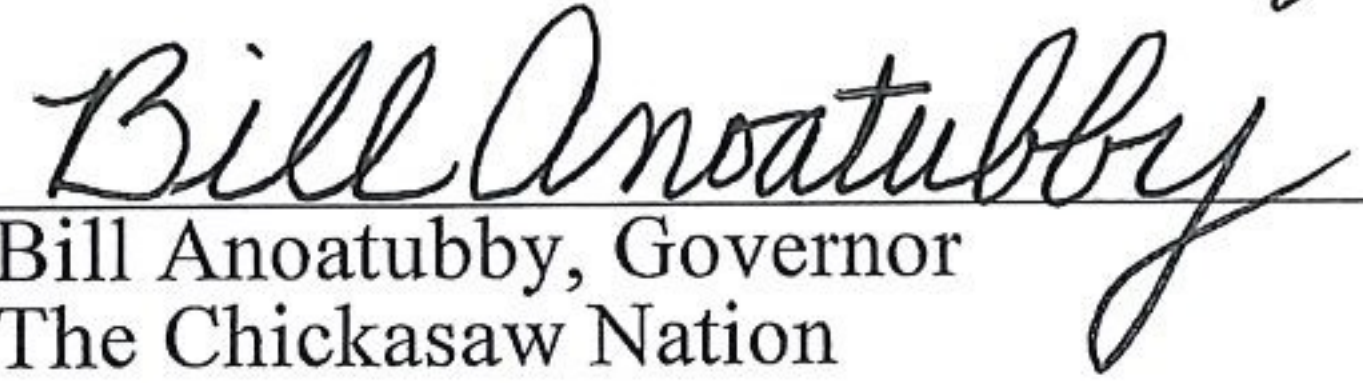
D. Domestic Violence by Strangulation shall be punishable by a fine not less than one thousand dollars (\$1,000) nor more than fifteen thousand dollars (\$15,000), or by imprisonment for a mandatory period not less than sixty (60) days nor more than three (3) years, or by both.

E. In addition to any other penalty specified by this Section, the Court may require a defendant to participate and complete a batterer's intervention program or similar program.

Executed in regular session of the Chickasaw Tribal Legislature, Meeting at Ada, Oklahoma, on December 18, 2020 by a vote of 12 ayes, 0 nays, 0 abstentions.


Chairperson
Chickasaw Tribal Legislature


Secretary
Chickasaw Tribal Legislature

Concur: 
Bill Anoatubby, Governor
The Chickasaw Nation

Date: DEC 18 2020

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Explanation:

This resolution creates four new sections in Title 17. The new sections add offenses for crimes against children and crimes of domestic violence.

Presented by:

Legislative Committee,
Chickasaw Tribal Legislature